NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-II
NEW DELHI

CA(CAA) - 57/ND/2019

CORAM:
SMT.INA MALHOTRA
Hon'ble Member (J)

SH. V.K SUBBURAJ
Hon'ble Member (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NEW DELHI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 23.04.2019

NAME OF THE COMPANY: In the matter of Amalgamation
IN THE MATTER OF:

1. M/s Param Exim Limited
   Having registered office at
   21/3, Ground Floor, Near Navgriha Mandir
   New Rajinder Nagar, New Delhi-110008

Applicant No.1/Transferor Company

WITH

2. M/s KLA India Public Limited
   Having registered office at
   21/3, New Rajinder Nagar, Geeta Mandir Marg
   Near Navgriha Mandir, Delhi-110008

Applicant No.2/ Transferee Company

SECTION OF THE COMPANIES ACT: 230-232

ORDER

As Per Ms. Ina Malhotra (Member Judicial)

1. This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 27th May, 2019.

2. Learned Counsel for the Petitioner Companies submits that in terms of the Amended Order dated 4th April, 2019 passed by this Tribunal in Company Application No.CA(CAA)-57(ND)2019, the meeting of all Equity Shareholders and Unsecured Creditors of the applicant company for the proposed Scheme of Amalgamation between the Transferor Company with the Transferee Company had been dispensed with in view of their consent affidavits being on record.

   There are no secured creditors of the Transferor Company.

3. It is therefore now directed that the notice of final hearing is fixed for 27th May, 2019 and shall be advertised in the daily newspapers namely, the "The Business Standard" in English and Hindi (Delhi Edition), not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the applicant companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b)Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) the Income Tax Department (d) Official Liquidator and to such other Sectoral Regulatory Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. Both the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the

date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

(V.K Subburaj)
Member (T)

(Ina Malhotra)
Member (J)